

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #
Date of filing:

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HUI MING LIN and SAI FENG CHEN,

Plaintiff designates
KINGS County as the
place of trial

Plaintiffs,

-against-

Basis of the venue is
Plaintiff's Residence

THE CITY OF NEW YORK, POLICE OFFICER
PEDRO A. RODRIGUEZ - Shield no. 28987, POLICE
OFFICER TRACEY R. METOO - Shield no. 20090,
and JOHN DOES-Police Officers as yet unidentified,

SUMMONS

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
November 8, 2023



HARRIS MARKS
BELLUCK AND FOX, LLP
Attorneys for Plaintiff
546 5th Avenue, 5th Floor
New York, NY 10036

DEFENDANT'S ADDRESS:

THE CITY OF NEW YORK

1 Centre Steet, 12th Floor

New York, NY 10007

PLAINTIFFS' ATTORNEYS:

BELLUCK AND FOX, LLP

546 5th Avenue, 5th Floor

New York, NY 10036

PEDRO A. RODRIGUEZ

New York City Police Department - 72nd

Precinct

830 4th Avenue

Brooklyn, NY 11232

TRACEY R. METOO

New York City Police Department - 72nd

Precinct

830 4th Avenue

Brooklyn, NY 11232

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
HUI MING LIN and SAI FENG CHEN,

Index No.:

Plaintiffs,

-against-

VERIFIED COMPLAINTTHE CITY OF NEW YORK, POLICE OFFICER PEDRO
A. RODRIGUEZ - Shield no. 28987, POLICE OFFICER
TRACEY R. METOO - Shield no. 20090, and JOHN
DOES-Police Officers as yet unidentified,Defendants.
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Plaintiffs, by their attorneys, BELLUCK AND FOX, LLP, complaining of the
defendants herein, upon information and belief, respectfully shows to this Court, and
allege as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF HUI MING LIN**

1. That at all times hereinafter mentioned, the plaintiffs, **HUI MING LIN** and **SAI FENG CHEN**, were and still are residents of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW YORK**, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on May 24, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter **THE CITY OF NEW YORK**, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on September 13, 2023.

6. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987**, **POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090**, and **JOHN DOES**-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **HUI MING LIN**, was lawfully present at the premises known as 5103 7th Avenue, in the County of Kings, City and State of New York.

8. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, at the aforementioned location, the plaintiff, **HUI MING LIN**, was approached, placed in handcuffs and was falsely arrested by the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987**, **POLICE OFFICER**

TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified.

9. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **HUI MING LIN**, was falsely arrested by defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid location.

10. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, **HUI MING LIN**, was approached and was assaulted and battered by the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**. The assault and battery consisted of being grabbed, pulled, punched, struck, kicked, twisted and taken to the ground by said officers.

11. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, plaintiff, **HUI MING LIN**, was assaulted and battered by defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES- Police Officers as yet unidentified**, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid location.

12. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

13. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090**, and **JOHN DOES-Police Officers as yet unidentified**, who committed the aforementioned assault and battery upon the plaintiff, **HUI MING LIN**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

14. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

15. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

16. By reason of the foregoing, the plaintiff, **HUI MING LIN**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF HUI MING LIN**

17. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "16" inclusive with the same force and effect as if more fully set forth at length herein.

18. That the defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**, who assaulted, battered and violated the civil rights of the plaintiff, **HUI MING LIN**.

19. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**, and continued to employ them and allowed them to be in contact with the public at large.

20. By the reason of the foregoing, the plaintiff, **HUI MING LIN**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF OF HUI MING LIN**

21. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "20" inclusive with the same force and effect as if more fully set forth at length herein.

22. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987**, **POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090**, and **JOHN DOES-Police Officers as yet unidentified**, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

23. Said actions exceeded all reasonable bounds of decency, were outrageous and resulted in severe emotional distress to the plaintiff, **HUI MING LIN**.

24. That as a result of said intentional and negligent acts, the plaintiff, **HUI MING LIN**, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

25. By reason of the foregoing, the plaintiff, **HUI MING LIN**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF HUI MING LIN**

26. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "25" inclusive with the same force and effect as if more fully set forth at length herein.

27. The defendant, **THE CITY OF NEW YORK**, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, **HUI MING LIN**.

28. The defendant, **THE CITY OF NEW YORK**, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

29. The defendant, **THE CITY OF NEW YORK**, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

30. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

31. The defendant, **THE CITY OF NEW YORK**, at all relevant times, was aware that these individual defendants, including but not limited to **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES-Police Officers as yet unidentified**, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

32. As a direct and proximate result of this unlawful conduct, the plaintiff, **HUI MING LIN**, sustained the damages hereinbefore alleged.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF HUI MING LIN**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on March 10, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090**, and **JOHN DOES-Police Officers as yet unidentified**, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

35. That the defendants, **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090**, and **JOHN DOES-Police Officers as yet unidentified**, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

36. By the reason of the foregoing, the plaintiff, **HUI MING LIN**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF HUI MING LIN**

37. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "36" inclusive with the same force and effect as if more fully set forth at length herein.

38. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

39. That the defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER PEDRO A. RODRIGUEZ - SHIELD NO. 28987, POLICE OFFICER TRACEY R. METOO - SHIELD NO. 20090, and JOHN DOES- Police Officers as yet unidentified**, herein-above alleged.

40. By the reason of the foregoing, the plaintiff, **HUI MING LIN**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF SAI FENG CHEN**

41. That at all times hereinafter mentioned, plaintiff repeats, reiterates and realleges each and every allegation contained in the paragraphs of this Complaint designated as "1" through "40" herein, as though more fully set forth herein at length.

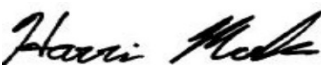
42. That at all times hereinafter mentioned, the plaintiff, **SAI FENG CHEN**, was the lawful spouse of the plaintiff, **HUI MING LIN**, and as such plaintiff, **SAI FENG CHEN**, was entitled to the society and services of the plaintiff, **HUI MING LIN**.

43. That reason of the afore-described negligence of the defendants, the plaintiff, **SAI FENG CHEN**, was deprived of the society and services of the plaintiff, **HUI MING LIN**, and shall forever be deprived of said society and services.

44. As a result of the afore-described negligence, the plaintiff, **SAI FENG CHEN**, expended diverse sums of money in payment of the expenses incurred for medical care, treatment and hospitalization for the plaintiff, **HUI MING LIN**.

WHEREFORE, plaintiffs, **HUI MING LIN** and **SAI FENG CHEN**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on all causes of action; together with attorneys' fees and the costs and disbursements of this action.

DATED: New York, New York
November 8, 2023

By: 
BELLUCK & FOX, LLP
Attorneys for Plaintiff
546 Fifth Avenue · 5th Floor
New York, NY 10036
(212) 681-1575

ATTORNEY VERIFICATION

STATE OF NEW YORK)
)
COUNTY OF NEW YORK)

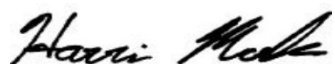
HARRIS MARKS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an associate of BELLUCK & FOX, LLP, attorneys of record for Plaintiffs, **HUI MING LIN**, and **SAI FENG CHEN**.

I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not by plaintiff is that Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, New York
 November 8, 2023



HARRIS MARKS